

Cirque Corporation

Privacy Policy (US Localized)

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1. Purpose

The purpose of this policy is to define Cirque's specific requirements for protecting the privacy of personal information collected, processed, and stored within its operations in the United States. This policy supplements the IS-CIRQ-P-017-G: Privacy Policy (Global Core) by addressing US federal and state-specific privacy laws and regulations, ensuring compliance and enhancing trust with individuals whose data we handle in the US.

****2. Scope****

2. Scope

This policy applies to all Cirque personnel, business processes, systems, applications, and networks located within or primarily serving the United States, that are involved in the collection, use, storage, transmission, and disposal of personal information related to US residents. It covers all types of personal information, including but not limited to employee data, customer data, and vendor data within the

US jurisdiction.

****3. Definitions (US-Specific)****

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- ****Consumer:**** For the purposes of this policy, often refers to a natural person who is a California resident, as defined by the California Consumer Privacy Act (CCPA) and California Privacy Rights Act (CPRA), or a resident of other states with similar privacy laws.
- ****Personal Information (PI) / Personally Identifiable Information (PII):**** As defined in the Global Core Policy, with specific attention to categories of personal information outlined by US state privacy laws (e.g., California, Virginia, Colorado).
- ****Sale (of Personal Information):**** The sharing of personal information for monetary or other valuable consideration, as defined by applicable US state laws (e.g., CCPA/CPRA).

****4. US-Specific Privacy Principles and Requirements****

4. US-Specific Privacy Principles and Requirements

In addition to the global principles outlined in IS-CIRQ-P-017-G: Privacy Policy (Global Core), Cirque adheres to the following US-specific requirements:

****4.1. Compliance with US Federal Laws:****

- a. ****HIPAA (Health Insurance Portability and Accountability Act):**** If Cirque processes Protected Health Information (PHI) as a covered entity or business associate, strict adherence to HIPAA Privacy, Security, and Breach Notification Rules is required.
- b. ****FERPA (Family Educational Rights and Privacy Act):**** If Cirque handles educational records, compliance with FERPA rules concerning student privacy is mandatory.
- c. ****COPPA (Children's Online Privacy Protection Act):**** If online services target or collect

information from children under 13, compliance with COPPA is required, including parental consent mechanisms. d. **Gramm-Leach-Bliley Act (GLBA):** If Cirque processes non-public personal information of customers in the financial services sector, compliance with GLBA safeguards and privacy rules is required. e. **CAN-SPAM Act:** Compliance with regulations for commercial email, including opt-out mechanisms and accurate sender information.

4.2. Compliance with US State Privacy Laws (Key Examples): a. **California Consumer Privacy Act (CCPA) & California Privacy Rights Act (CPRA):** **Consumer Rights:** Establish procedures to fulfill consumer rights, including the right to know, right to delete, right to opt-out of the sale/sharing of personal information, and the right to correct. **Notice at Collection:** Provide clear notice to consumers about the categories of personal information collected and the purposes for which it will be used. **Opt-out of Sale/Sharing:** Implement mechanisms for consumers to exercise their right to opt-out, including a clear "Do Not Sell or Share My Personal Information" link on relevant online interfaces. **Service Provider Contracts:** Ensure contracts with service providers meet CCPA/CPRA requirements. **Data Minimization & Storage Limitation:** Emphasize principles of data minimization and purpose limitation in line with California requirements. b. **Virginia Consumer Data Protection Act (VCDPA), Colorado Privacy Act (CPA), and other emerging state privacy laws:** Where applicable based on thresholds and operations, Cirque will implement processes to address similar consumer rights (access, deletion, correction, opt-out of sale/targeted advertising) and duties of controllers (e.g., data protection assessments, purpose limitation).

4.3. Employee Data Privacy (US-Specific): a. Personal information related to US employees shall be handled in accordance with federal laws

(e.g., EEOC regulations, ADA, FCRA if background checks are involved) and applicable state employment and privacy laws. b. Specific privacy notices may be provided to employees regarding the collection and use of their data.

****4.4. Privacy Notices and Transparency:**** a. Provide clear, concise, and accessible privacy notices to individuals (e.g., website privacy policy, employee privacy notice) detailing: * Categories of personal information collected. * Purposes of collection and processing. * Categories of sources from which personal information is collected. * Categories of third parties with whom personal information is shared. * Instructions on how data subjects can exercise their rights. b. Keep privacy notices up-to-date with changes in data practices or applicable laws.

****4.5. Data Breach Notification:**** a. In the event of a personal data breach involving US residents, Cirque shall comply with all applicable US federal and state data breach notification laws. This includes timely notification to affected individuals, and potentially state Attorneys General or other regulatory bodies, as required by law. (Refer to IS-CIRQ-PR-020-US: Incident Response Procedure (US Localized)).

****5. Responsibilities (US-Specific)****

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- ****US General Manager:**** Oversees compliance with US privacy laws and acts as a key point of contact for US privacy matters.
- ****US Legal Counsel (or designated external counsel):**** Provides specific legal interpretation and guidance on US federal and state privacy laws, reviews privacy notices, and advises on data subject requests and breach notifications.

- **US IT Lead:** Responsible for implementing and maintaining technical controls to protect personal information within US systems.
- **Human Resources (US):** Ensures compliance with employee privacy regulations specific to the US.

****6. Training and Awareness****

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All US personnel involved in handling personal information shall receive training specifically covering US federal and state privacy laws relevant to their roles, in addition to global privacy principles.

****7. Compliance and Monitoring****

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- a). **Cirque** will periodically assess its privacy practices against US federal and state legal requirements.
- b). Internal audits and privacy impact assessments (PIAs) may include US-specific legal compliance checks.

****8. Related Documents****

8. Related Documents

- IS-CIRQ-P-017-G: Privacy Policy (Global Core)
- IS-CIRQ-P-016-G: Compliance Policy
- IS-CIRQ-PR-020-US: Incident Response Procedure (US Localized)
- IS-CIRQ-P-001-G: Information Security Policy
- Applicable US Federal Laws (e.g., HIPAA, COPPA, GLBA - external reference)

- Applicable US State Laws (e.g., CCPA/CPRA, VCDPA, CPA - external reference)

- Website Privacy Policy / Employee Privacy Notice (external facing/internal HR document)

****9. Policy Review****

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This policy will be reviewed at least annually, or sooner if there are significant changes to Cirque's US operations, new US federal or state privacy laws, or legal interpretations affecting US data privacy practices.